Supply Agreement - Vehicle Spare Parts

Contract reference: AF-PRC-2025-009

1. Parties

This agreement is between Aldermoor Freight Ltd ("Aldermoor") and SwiftParts Ltd ("the Supplier"), a distributor of commercial vehicle parts registered in England.

2. Term and renewal

The agreement starts on 1 March 2025 and runs until 28 February 2027 (the "Initial Term").

After the Initial Term it renews automatically for successive periods of 12 months, unless either party gives written notice of non-renewal at least 90 days before the end of the current term.

3. Scope

The Supplier will supply genuine and approved-equivalent spare parts for Aldermoor's HGVs and trailers, including brakes, filters, lighting, tyres, and electrical components, to the Daventry vehicle workshop and the Leeds depot.

Parts are ordered through the Supplier's online trade portal or by phone. Each order must quote an Aldermoor purchase order number.

4. Delivery

- Critical parts (a part needed to return an off-road vehicle to service) are delivered within 24 hours of order.
- Standard parts are delivered within 3 working days of order.
- If a critical part is delivered late, the Supplier credits 10% of that order's value.

Risk in the parts passes to Aldermoor on delivery. Ownership passes on payment.

5. Prices

Prices are as set out in the Supplier's trade price list, less a 12% contract discount.

The Supplier may review prices once a year, on 1 March. Any increase is capped at 4% and requires 60 days' written notice to Aldermoor.

6. Invoicing and payment

The Supplier invoices monthly for all parts delivered in the previous month. Aldermoor will pay undisputed invoices within 45 days of the invoice date.

Disputed amounts must be raised in writing within 14 days of receiving the invoice. Both parties will try in good faith to settle a dispute within 30 days.

7. Returns and warranty

Unused parts in original packaging may be returned within 30 days for a full credit. Parts that fail within 12 months of fitting are replaced free of charge.

8. Liability

Each party's total liability under this agreement in any contract year is limited to £250,000. This limit does not apply to death or personal injury caused by negligence, or to fraud.

9. Termination

Either party may end this agreement for convenience by giving 90 days' written notice.

Either party may end it immediately if the other commits a material breach that is not fixed within 30 days of written notice, or becomes insolvent.

10. Confidentiality

Each party will keep the other's confidential information secret, during the agreement and for three years after it ends.

11. Contacts

Aldermoor contract owner: Head of Procurement, Aldermoor Freight Ltd.

Supplier account manager: Laura Pemberton, laura.pemberton@swiftparts.example.com, 555-0182.

12. Signatures

Signed for Aldermoor Freight Ltd by the Chief Executive Officer, 14 February 2025.

Signed for SwiftParts Ltd by its Managing Director, 14 February 2025.